

# Right to Education

## Are We on the Right Track?

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Despite a few glaring shortcomings, the Right of Children to Free and Compulsory Education Act, 2009 proved to be a landmark. It provided a justiciable legal framework that entitled all children (6–14 years) to education and established basic parameters for quality education. Several provisions are, however, still not in place, which brings the efficacy of its features and implementation into question. This article considers the progress and shortcomings of the implementation of the act.

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The much-awaited law that guarantees children access to free and compulsory education—the Right to Education Act—came into effect 63 years after India attained independence. This right, despite being integral to ensuring the quality and dignity of life of children, and Gopal Krishna Gokhale's insistence on the same, was not listed under the fundamental rights granted by the state to its citizens during the formation of the Constitution. The goal of providing education to all children under 14 years of age was included in Article 45 in the non-justiciable Directive Principles of State Policy, to be achieved within a 10-year time frame. Since the directive principles are not legally binding on the state, the timelines kept getting extended with impunity. Finally, in 2002, Parliament passed the 86th amendment to the Constitution, making the right to education (RtE) a fundamental right of every child from age 6–14 years. In fact, it placed RtE on par with the right to life by extending Article 21 to include Article 21A—the right to education. This arrangement came to an

end when the RtE Act was passed in August 2009 and came into effect on 1 April 2010. Despite a few glaring shortcomings, the act proved to be a landmark judgment as it put in place a justiciable legal framework that entitled all children in this age group to education and even laid down the minimum parameters of quality education.

A three-year deadline, ending on 31 March 2013, was fixed for meeting infrastructural requirements and for deploying an adequate number of teachers in schools. The provisions related to training teachers had a more extended timeline, that is, ending on 31 March 2015, but even this deadline has now been extended to 2019.

It has been seven years since the act was passed and one keeps reading and hearing that several provisions are still not in place, which brings the efficacy of its features and implementation into question. This article attempts to review the progress and shortcomings of the act from both these angles (structure and execution), drawing insights from the Right to Education Forum's<sup>1</sup> systematic annual reviews of the status of RtE implementation since 2011.

### Significance

It must be recognised that this act is not just another scheme or programme initiated by the government; it aims to

transform education into a non-negotiable fundamental right. It is an entitlement that the state provides to its children—not as an act of charity, but as something they rightfully deserve—and something which will allow them to live a life of dignity.

Education was made a fundamental right primarily to aid disadvantaged and marginalised children and not for those who have adequate resources and easy access to well-equipped private and government schools. This right needs to translate into equitable educational opportunities and experiences for all children and should not be regarded as the provision of cheap, substandard education for the hitherto neglected.

It must also be unambiguous in practice that since this right concerns minors, either an adult or an institution must be responsible for ensuring that it does not get violated. While parents are the natural guardians of their children, they cannot be held accountable for issues such as access to, and equity and quality of, education. In principle, this act recognises that elementary education is entirely the responsibility of the state, which it should not palm off to civil society or private players in the name of efficiency, excellence, or even partnership.

### Enabling Provisions

The act mandated some very basic provisions and introduced some extremely progressive measures to reform the Indian education system. It mandated that there should be a school in close physical proximity to every child (1 km for primary level and 3 km for upper primary level); it initiated age-appropriate learning (by mandating special training for out-of-school children or school drop-outs to enable them to be on par with their peers) and laid down norms and standards pertaining to infrastructure and the pupil-teacher ratio (PTR) for every school. It introduced continuous and comprehensive evaluation (CCE), outlawed corporal punishment, included the private sector within its purview and extended quality parameters to private schools, and ensured the participation of all stakeholders in the education process—including parents—by forming

a School Management Committee (SMC) in every school. Therefore, besides providing a normative framework for implementation, the act also has several provisions to ensure a fear-free teaching and learning environment for children in schools, and reformed existing curriculum and assessment practices. In this context, one of its most progressive provisions was the prohibition of detention of children until class 8; unfortunately, this was one of the most contested provisions and was eventually removed.

### Inherent Lacunae

The act has some serious lacunae. First is the exclusion of children between the ages of 0–6 and 14–18 years from its ambit (it is difficult to imagine how just elementary schooling can be sufficient to help children progress either in their academic or life journeys). The act also failed to establish norms essential for building a national system of public education of universal quality, let alone constituting a common school system, as envisaged by the Kothari Commission in its report (1964–66) (Government of India 1966); according to experts, this is a major drawback, as it legitimises continuing a stratified schooling structure in private and public spaces. There is no clear budgetary framework or allocation of resources towards implementing the act. It makes no special provisions for children from marginalised groups such as street children, children from migrant families, and children in conflict zones who encounter specific difficulties in accessing schools; these issues need to be addressed. First generation learners are similarly clubbed under one generic rubric as disadvantaged children. The act seems to operate on a misguided assumption that the states and bodies responsible for implementing the act would deal with such issues sensitively, identify concerns, and make the necessary financial provisions available.

### Journey So Far

The implementation of the act since its enactment in 2010 has been far from smooth. However, to imagine otherwise would have been unrealistic, given the magnitude of the problem which has

resulted from years of state neglect. In this context, it is important to recognise that the implementation of the act has not been uniform across states. While a few states are still lagging behind, a few have shown tremendous progress, reflecting the “do-ability” of the act’s provisions given a conducive atmosphere, requisite resources, and strong political will.

There have been a few significant but mixed achievements. As per District Information System for Education (DISE) (2015–16) data, the gross enrolment ratio (GER) of children was 99.21% at the primary level and 92.81% at the upper primary level, whereas the net enrolment ratio (NER) was 91.64% at the primary and 90.09% at the upper primary levels. While this signals positive improvement, it must be noted that even though the issue of access is critical, the nature of access and quality of learning experiences provided in these spaces is of far greater relevance and social significance. Various assessment surveys have repeatedly documented the decline in the learning levels of children studying across all schools, but mainly government ones. Besides, pedagogic processes are far from satisfactory and there is little adherence to either the National Curriculum Framework 2005 or CCE framework of assessment, which are two of the most progressive measures to reconceptualise and reimagine what was essentially a rote-based education system.

There has been some improvement in the total number of primary and upper primary schools and in infrastructure like drinking water facilities, playgrounds, and girls’ toilets. As per DISE 2014–15, 96.06% elementary schools had drinking water facilities, 92.03% had functional toilets for boys, and 92.54% had functional toilets for girls. However, one cannot be sure of the extent and manner to which this has been achieved across all schools and states. Besides this, 40% of schools do not have playgrounds and more than 20% do not have libraries.

Thirty-two states report having instituted monitoring bodies to oversee the implementation of the act. The National Commission for Protection of Child Rights (NCPCR) was set up as an independent body by the Ministry of Human Resource

Development (MHRD) to monitor its implementation. However, this does not mean that it functions smoothly and efficiently, since it has neither the mandate nor the requisite resources. It is reported that 59% (4,881) of complaints were not addressed till January 2017 (RtE Forum 2016–17). State Commissions for Protection of Child Rights (SCPCRs) have been set up in some states, but where they exist, they are managed by meagre staff and are not completely free of government interference. A better marker of their effectiveness would be to examine whether these bodies have penalised any government official or body. That said, there are a few positive stories. Madhya Pradesh and Odisha have executed innovative measures such as toll-free numbers for redressing grievances, and Odisha has evolved a system of tracking child participation and providing information on the functioning of schools through its educational portal, which is updated fairly regularly.

### Glaring Bottlenecks

Besides the fact that the timelines have clearly not been adhered to, there are several other fronts on which the implementation of the act is floundering. The latest DISE data show that only 9.54% schools in India are fully compliant with RtE norms concerning infrastructure and teacher availability; 21 states are below the national average. There are some areas in which action has been particularly slow or misguided.

There is a strong correlation between the social backgrounds of children and their experiences in the Indian education system. According to Desai et al (2010), there is a stark social disparity in education, which impacts enrolment and dropout rates. Dalit, Adivasi, and Muslim children are far less likely to enrol in schools and slightly more likely to drop out. Thus, while 94% of children from forward castes and 96% of children from other religious groups were enrolled, the figures for Dalits, Adivasis, and Muslims were 83%, 77%, and 76%, respectively. Research studies and reports also show that their experiences in school are laced with instances of physical and symbolic violence.

There is still a huge population of children who remain outside the formal school system. There are gross discrepancies in the data reported by different agencies regarding this category of children. According to MHRD Survey 2014, there are six million children outside the formal school system; as per Census 2011, the figure is 38 million. Even among those enrolled, a sizeable proportion is likely to drop out before completing their elementary education. While these are the figures reported, one can imagine the number of cases that go unnoticed and are not registered. These children essentially come from the poorer and marginalised sections of society—particularly, street children, child labourers, children living in conflict zones, and differently abled children.

There are no data available on the number of children from marginalised communities who have been given special training—as envisioned in the act—and have actually gained entry into formal schools.

One of the primary reasons why the RtE Act has failed to achieve its goals is that there are no dedicated financial resources for its implementation. Even when the act was passed, it was not accompanied by a financial memorandum to ensure the availability of the requisite financial resources for its implementation. Additionally, budgetary allocations to the Sarva Shiksha Abhiyan (SSA), the primary body for implementing the act, have witnessed a gradual decline (from ₹23,873 crore in 2012–13 to ₹22,500 crore in 2015–16). The allocation of 6% of India's gross domestic product (GDP) to education, as proposed by the Kothari Commission, remains a distant dream, and actual allocation has stagnated at 3.5%. While on

the one hand, there are limited funds, on the other, these funds remain underutilised. The Comptroller and Auditor General (CAG), in a performance audit that was tabled recently in Parliament, stated that “governments/state implementing societies were consistently unable to utilise the funds.” This underutilisation ranged from 21%–41% between 2010–11 and 2015–16. The state governments have failed to utilise over ₹87,000 crore of the allocated corpus in the first six years of the act, affecting the effectiveness of RtE (Nanda 2017).

The RtE Forum opines that the flow of funds gets further delayed due to the lack of accounting staff and the non-computerisation of systems, leading to the underutilisation of funds by the SSA. Within the allocated budget, a large proportion of resources is devoted to schools such as Navodaya Vidyalaya, Sarodaya Vidyalaya, and Kendriya Vidyalaya (KV). While the first two were set up as “model” schools for meritorious students, KVs cater to children of central government employees. In these schools, the expenditure per child is far above that in other schools, legitimising a graded public education system that treats students differently in light of their differing social positions.

Not only is the professional morale of the teaching community at an all-time low, but there is a significant shortage of even this withering teaching cadre. A substantial number of schools still have only one teacher, which negatively affects the PTR. There are delays in teacher appointment and deployment. They are often appointed on a contractual basis, and more than half a million teachers are underqualified as per RtE norms; these underqualified teachers are mostly

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concentrated in low-performance states such as Uttar Pradesh, Bihar, West Bengal, Assam, Odisha, Chhattisgarh, and Madhya Pradesh. Their service conditions are poor and their salaries are often delayed. Moreover, they are saddled with administrative work beyond school hours, reducing the time they actually spend on academic tasks with children in the classroom.

Seven years after the commencement of the RTE Act, a shortage of 9.4 lakh trained teachers has been reported in government schools (5.86 lakh in primary schools and 3.5 lakh in upper primary schools). Around 8.3% (96,000) primary schools have only one teacher. Although the SSA has sanctioned 19.8 lakh teaching posts up till 2012–13, only just over 15 lakh teachers have been recruited as of 2014. The process for hiring teachers is time-consuming and litigation in courts also frequently holds up the appointment process. According to DISE (2015–16), only 80.31% teachers were professionally trained. Needless to

say, this is the most fundamental obstacle to realising the RTE in the spirit in which it was envisaged.

### Private Exemption

The private school lobby has always been more interested in protecting its own interests and has demanded exemption from RTE norms. Although regulations concerning private schools have been tightened in a few states, there is no national mechanism for ensuring compliance with RTE norms in private schools. The private school lobby is fiercely contesting the reservation of 25% of seats for children from economically weaker sections (EWS) in private schools. They are also seeking exemption from the minimum infrastructural requirements laid out in the RTE Act on the grounds that despite not being able to adhere to these norms, they provide quality education to poor children.

Linguistic and religious minority institutions (both aided and unaided), seeking refuge in their constitutional rights, have managed to keep themselves

out of the purview of the act through a legal pronouncement. Allegedly, a large number of litigations concerning the act have been to not enforce the law rather than the other way around.

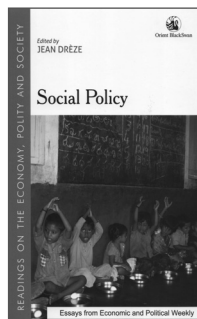
The act recognises parents and the community as important stakeholders in their children's education and has vested them with some powers. The first step is the formation of the SMC. However, the constitution of SMCs is plagued with several problems—a lack of awareness and clarity around roles, a lack of funds, the absence of competence and training to prepare school development plans (SDPs), and most importantly, the lack of the autonomy and ability to question school authorities.

In 2015–16, all states reported the existence of SMCs in 95% of schools. Allegedly, most of them existed only on paper; where they did exist, they did not prepare SDPs and did not get the grants their schools required. Since there is no homogeneous community of parents across India, their position and ability to

## Social Policy

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The reach of social policy in India has expanded significantly in recent years. Facilities such as schools and *anganwadis*, health centres, nutrition programmes, public works and social security pensions are reaching larger numbers of people than before. Some of these benefits now take the form of enforceable legal entitlements.

Yet the performance of these social programmes is far from ideal. Most Indian states still have a long way to go in putting in place effective social policies that directly address the interests, demands and rights of the unprivileged.

This collection of essays, previously published in the *Economic and Political Weekly*, has been clustered around six major themes: health, education, food security, employment guarantee, pensions and cash transfers, and inequality and social exclusion. With wide-ranging analyses by distinguished scholars brought together in a single volume, and an introduction by Jean Drèze, *Social Policy* will be an indispensable read for students and scholars of sociology, economics, political science and development studies.

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impact the functioning of schools is influenced vis-à-vis their status in society. It would be naïve to view all parents through the same lens and regard the constitution of SMCs as a sign of empowerment.

In consonance with the belief that failing children by holding them back in school promotes learning, the central government and states have done away with one of the most progressive provisions of the RTE, that is, non-detention policy (NDP), which upheld the child's right to stay on in school through Class 8 (this provision has now been reframed to include children up to Class 5). The provision was mistakenly interpreted as abolishing assessments and allowing children to automatically pass from one class to the next, resulting in very little learning. The whole idea of failing or detaining a child in the existing class is antithetical to the act's vision of ensuring a stress-free learning environment for children for eight years. Research shows that the deleterious impact of the pass-fail detention policy on children's motivation to stay in school is pushing them out of the system. To add insult to injury, board exams are now back with a vengeance, and as early as in Class 5.

Added to the problem of declining enrolments in government schools over the past few years, there have been mass closures of schools in a few states. Around 18,000 schools were initially closed or merged by the Rajasthan government; in Maharashtra, the figure was 13,000 in 2014. In some urban areas, government schools were closed despite catering to a good number of children—the cost of the land on which the schools were built had increased over time and the land mafia wanted to acquire it (RtE Forum 2016–17).

A recent study reports that in Telangana, schools declaring zero enrolment or which had fewer than 20 students were closed down. This led to the closure of 458 government schools by January 2016. The Odisha government closed 165 schools with five children or fewer. In the second phase, it is planning to close schools with 10 children or fewer. Apparently, enrolment norms were not being strictly followed, and in some places like Odisha and Rajasthan, many

schools were being arbitrarily closed down, impacting a large number of girls and poor children (Rao et al 2017). Such a policy, when followed indiscriminately, leads to several children dropping out of schools and the establishment of low-cost private schools that operate mainly by recruiting underpaid and under-qualified contractual teachers, thus creating a further schism in the quality of education imparted to poor children.

The Indian state, which opened itself to privatisation, liberalisation, and globalisation in the early 1990s, contrary to the central tenet of the act, continues to reduce its responsibility in the social sector and invites the private lobby to either partner with it or take over its responsibilities. Quite a few states have entered into a public–private partnership, where the management of public schools is handed over to private players. Subsequently, more teachers have moved to the private sector, and there has been a decrease in the appointment of public school teachers. Presently, low-cost private schools are portrayed as providers of quality education to poor children, who are apparently disillusioned with government schools and do not want to continue in them. Researchers in the field are fiercely contesting the validity of this claim. A recent longitudinal study conducted by the Azim Premji Foundation in Andhra Pradesh stated that, contrary to general perception, private schools that charge fees are unable to ensure better learning for children from disadvantaged communities as compared to government schools.

It is unrealistic to believe that the private sector can either assume responsibility or be held legally responsible for universalising education. Wherever education has been universalised, it has been done by publicly-funded and state-run schools (Green 1990) and not through profit-making private or philanthropic initiatives.

### What Next?

I will not end this article with recommendations, as academics and civil society organisations have been shouting themselves hoarse for the past couple of years about what needs to be done to

universalise elementary education. There is little rocket science involved in identifying and removing challenges surrounding the implementation of the act. All it requires is strong political will, effective delivery and monitoring mechanisms, and most importantly, clearly earmarked financial resources. The Indian state has to give education the utmost priority and regard it as an absolutely non-negotiable entitlement of children. Additionally, what may perhaps be required is strengthening (not replacing) the public education system by launching a massive public movement, urging the state to take complete ownership of implementing this act within a constitutionally prescribed time frame.

### NOTE

- 1 The Right to Education Forum is a national collective of non-governmental organisations (NGOs), international non-governmental organisations (INGOs), teachers' union representatives, educationists, education and child rights networks, and activists working to implement the RTE Act and strengthen the public education system.

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